

16 May 2025



SALES CONTRACT NO. S005539.0000

This contract made on 16 May 2025 between _____ (hereinafter referred to as the Buyer) on the one part, and _____ or nominee (hereinafter referred to as Seller) on the other part.

It is hereby agreed, that the Seller will sell and the Buyer will buy, in accordance with the terms and conditions stipulated hereinafter.

SELLER:

BUYER:

COMMODITY:

South American / South African Corn at Seller's option.

SPECIFICATIONS:

Moisture	14.50% maximum
Aflatoxin	20 ppb maximum
Foreign matter	1.50% maximum
Broken kernels	3.00% maximum
Damaged kernels	5.00% maximum

WEIGHT/QUALITY/CONDITIONS:

Weight, quality and conditions final at load port as per first class independent surveyor at Seller's option. The certificates issued at loading shall be taken as final as per first class independent surveyor at Seller's option and cost.

QUANTITY:

2,000 metric tons with 5% more or less at Seller's option at contract price.

PRICE:

USC 168.00 per bushel over CBOT Dec 2025 CORN Futures Cost and Freight (CNF) Free Out (FO), 1 safe berth 1 safe port any Phu My / Cai Mep Area Port, Vietnam at Seller's option.
Conversion factor for corn from USD/Bushel to USD/MT is to multiply by 39.37.

PRICING:

Buyer to fix the futures latest 5 working days before shipment period or two days before first notice date, whichever is earlier. The number of futures contracts to be priced per shipment will be approximately the mean quantity. The tolerance quantity will be deemed as priced based on such mean quantity pricing.

Buyer shall roll unpriced balance (if any) to deferred futures month 2 working days before the first notice day (FND) as published by the CBOT, failing which Seller has the right to roll any balance at the current market spread.

Price will be fixed during the session of the CME. Buyer to advise Seller by email the required price and respective quantity and then Seller to advise order confirmation in written that Seller received Buyer's email and then the order is to be deemed as placed; otherwise that order to be deemed as not executed. Verbal advice is not acceptable.

Future order always to be placed in e-trade session and not in the pit session.

Seller has no responsibility and no obligation for executed futures price at any time at all.

The actual contract price will be based on the average of all the futures fixed price of this contract.

PACKING:

In bulk.

INSURANCE:

Buyer shall provide insurance for its account and give seller a confirmation prior to commencement of the shipment period. If buyer fails to provide the confirmation, seller shall have the right to place such insurance at buyer's risk and account.

Buyer's obligation to provide war risk insurance shall be as per Gafta insurance clause. If the Seller incurs, pursuant to the terms of the relevant C/P, additional costs or charges relating to insurance including but not limited to war risk insurance premium for the

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vessel's hull and machinery, cargo insurance and/or crew, then any and all such costs shall be paid by the Buyer to the Seller upon Seller's demand with supporting documents. Seller's invoice to be settled within 7 working days.

SHIPMENT:

For South American Corn: 01st October 2025 – 31st October 2025. Both dates included with GAFTA shipment extension.

For South African Corn: 15th October 2025 – 15th November 2025. Both dates included with GAFTA shipment extension.

PAYMENT:

In US Dollars by Irrevocable letter of credit AT 100% Sight issued by first class bank in Vietnam acceptable to Seller. Fully operable letter of credit to be received by Seller latest by 15th September 2025 (15 days prior to 1st date of shipment period) covering full contract value and allow for further 5% tolerance in both quantity and amount which must be stipulated in the letter of credit. Time of payment under this clause shall be of essence.

DOCUMENTS REQUIRED:

1. Signed commercial invoice in 3 original and 2 copies.
2. Full set of 3/3 original and 3 non-negotiable copies of clean on-board bills of lading marked 'freight prepaid' and made out to order (blank endorsed) and notify Buyer or its nominated party.
3. Weight certificate issued by independent surveyor in 1 original and 2 copies.
4. Quality certificate issued by independent surveyor in 1 original and 2 copies.
5. Fumigation certificate issued by fumigation company or independent surveyor in 1 original and 2 copies.
6. Packing list in 3 original and 2 copies.

The following will be presented directly to buyer outside the l/c prior to vessel's arrival at Vietnam. However, such said documents are not required for payment:

- Phytosanitary certificate issued by government authorities in 1 original and 2 copies.
- Certificate of origin issued by chamber of commerce in 1 original and 2 copies.

The letter of credit to allow for open confirmation and confirmation charges to be for beneficiary's account, and to include below conditions:

1. L/C to be expired at the counters of negotiating bank in Singapore and valid for 30 days after the last day of shipment period.
2. L/C to be available with any bank for negotiation.
3. Negotiating bank is allowed to add confirmation to this l/c.
4. Charter party b/l and berth term grain b/l allowed.
5. Any certificates issued in local official language but with English translation acceptable.
6. Third party documents acceptable except for drafts and invoice.
7. All documents except b/l dated later than b/l date acceptable.
8. Fumigation certificate showing date of fumigation later than b/l date acceptable.
9. Place of fumigation differs from load port in b/l acceptable.
10. All documents except commercial invoice not showing full description of cargo acceptable.
11. Phytosanitary certificate and Certificate of Origin showing consignee as notify party acceptable.
12. Documents showing quantity in metric tons and/or pounds and/or short tons acceptable.
13. Typo error or minor spelling mistakes acceptable.
14. Documents showing handwritten details acceptable.
15. Inconsistent shipper or exporter or consignor on documents acceptable.
16. Commingling of cargoes allowed.
17. All documents including b/l if destination show port of discharge as "Cai Mep and/or Phu My, Vietnam" is acceptable.
18. Description of goods shown in documents contains "Corn" and/or "Corn Grain" and/or "Maize" is acceptable.
19. All documents except sight draft and commercial invoice not to indicate l/c number and date.
20. An extension of the latest shipment date of this l/c is acceptable by a period of up to 8 days. Delay shipment penalty:
 - A. If the latest shipment date extends by 1, 2, 3 or 4 additional days, deduction rate at 0.5% of contract price
 - B. If the latest shipment date extends by 5 or 6 additional days, deduction rate at 1.0% of contract price.
 - C. If the latest shipment date extends by 7 or 8 additional days, deduction rate at 1.5% of contract price.in this case, late shipment is not treated as discrepancies and the l/c validity will then automatically be extended by the number of days the shipment is delayed.
21. Documents presented later than 21 days after b/l date but within l/c validity acceptable.
22. Notify party on shipping documents (if any) without showing address is acceptable.
23. Documents dated prior to the l/c opening date acceptable.
24. All bank charges outside Vietnam are for beneficiary's account.
25. Invoice amount lower than LC tolerance due to deduction of late shipment penalty and/or quality rebate is acceptable
26. Quality certificate shows Aflatoxin as "Aflatoxin" or "Aflatoxin (B1,B2,G1,G2)" or "Aflatoxin Total" acceptable

DISCHARGE TERMS:

1. Discharging to be based on Customary Quick Despatch (CQD) terms.
2. Under CQD terms, Buyer has obligation to receive cargo as fast as vessel can deliver. It is Buyer's obligation to ensure import documentation readiness prior to vessel arrival. All delays to vessel berthing and discharging caused by Buyer or their associates (insufficient trucks, lack of barges, lack of storage space, insufficient workers, non-readiness of import documents, etc) shall count as time for detention to vessel on Buyer's account. In event of Buyer's failure to perform, Seller has the rights to discharge cargoes into warehouse facility appointed by Seller, and all cost and risk arising will be for Buyer's account. Seller has the rights to claim detention money for the vessel for any/all time lost.
3. Detention rate at discharge port to be declared 2 days before vessel arrival at discharge port. Detention rate will be as per charter party or 125% of demurrage rate as per charter party whichever is higher.
4. Detention if any, to be settled by Buyer within 7 calendar days upon receiving Seller's faxed debit note.

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5. Notice of readiness to discharge shall be tendered to the Buyer or their agent between the hours of 08:00 to 17:00 from Monday to Friday and from 08:00 to 12:00 on Saturday.
6. Overtime charges to be paid by the Seller if ordered by Seller. Overtime charges to be paid by the Buyer if ordered by Buyer and/or port authority.
7. Buyers shall share shrink (if any) with the receivers at the same discharge port as per B/L quantity (except the Buyer who has the cargo in separated hold).
8. Buyer hereby agrees and acknowledges that Seller assume no risk to the goods after the goods passes the ship's rail at load port pursuant to CNF terms. In the event of any differences between B/L shore quantities at load port and draft survey quantities at load port, B/L shore quantities at load port shall prevail.
9. Buyer guarantees arrival draft with minimum 13.0 metre saltwater draft at berth. Any lighterage will be for Buyer's account. Lighterage/lightering, if any requested by Buyer, to be at Buyer's risk and expense and time used for lighterage/lightening to count as laytime.

OTHER TERMS:

1. Partial shipment allowed/Transshipment allowed.
2. Cargo commingled and combined shipment of same and/or different discharge port(s) allowed.
3. Geared or gearless vessel allowed at Seller's option.
4. Vessels twenty-six (26) years maximum allowed. If vessel is above 15 years, overage insurance premium as per London Lloyds scale for Seller's account. Buyer must submit original supporting documents such as insurance premium receipt together with the invoice to Sellers within 60 days from B/L date, failing which the claim is irrevocably time-barred, null and void.
5. No restrictions on vessel type/flag of performing vessel.
6. Seller to appoint ship's agent at discharge port.
7. Vessel shall be classified Lloyds 100A1 or equivalent, fully P and I, hull and machinery insured.
8. Vessel type to allow woodchip carrier.

FAILURE TO PAY:

In the event that the Buyer fails to effect payment of any amount(s) due under this Contract, or in the event payment is by documentary credit and the Buyer fails to open the documentary credit in accordance with the deadline, the Seller has, at its sole discretion the right to carry out any of the following non-exhaustive list of options:

- (a) Add any costs, expenses or damages incurred by the Seller to the Contract price and/or renegotiate the Contract price;
- (b) Extend the shipment or delivery period by the same period as the delay in performance by Buyer of its payment obligations) under this Contract;
- (c) Charge interest at the rate of 10% per annum from the payment due date until the date Seller has received the payment, or from the due date of opening of documentary credit to the date that documentary credit is opened in accordance with the terms and conditions of this Contract in the event payment is by documentary credit;
- (d) Terminate this Contract with immediate effect and sell the commodity to another counterparty of its choice.

Any and all losses, costs, expenses and/or damages which the Seller may incur by reason of (but not limited to) the above will be entirely for the account of the Buyer and Buyer hereby agrees to indemnify Seller for such amounts.

LICENCE / TAXES/QUOTAS/PERMITS:

Any and all necessary import permits, licenses, quotas, taxes or levies are for the account and risk of the Buyer. Any failure on behalf of the Buyer to obtain same shall not constitute force majeure. Consular fees, duties and/or taxes on goods at port of discharge are to be for Buyer's account.

TITLE AND RISK:

Risk in the goods shall pass from Seller to the Buyer as soon as the goods are onboard the vessel as per governing incoterms 2020. Title to the cargo shall only pass from the Seller to the Buyer upon receipt of full payment from the Buyer in accordance with the Seller's instructions

PREVENTION OF SHIPMENT:

The prevention of shipment clause of GAFTA contract form no. 100 applies to this contract.

INTERNATIONAL SHIP AND PORT (ISPS) CODE:

Buyer is obligated to nominate a port and facility which is fully compliant with the security requirements. Any risks, including any delay, and expenses arising from the failure of the nominated port or facilities to be fully compliant with the security requirements or solely arising out of or related to security regulations or measures required by the port facility or any relevant authority in accordance with the security requirements, shall be borne by Buyer, unless such delays or expenses result from Seller's or its Vessel's negligence or active fault, and Buyer shall directly pay or indemnify Seller for any such delay or expenses.

SANCTIONS

Buyer and Seller each represent and warrant that neither it nor any person or entity that owns or controls it, nor any of its subsidiaries, any of its directors, officers or employees nor, to its knowledge, any of its contractors, agents and representatives is a designated target of trade sanctions promulgated by the U.S., E.U., U.K., Switzerland or any other jurisdiction having a legal nexus with this Contract ("Sanction Laws");

Buyer and Seller each undertake that for the purposes of this Contract:

- no originating country, transit country, destination country, document, person, entity or means of transportation or payment associated directly or indirectly with this Contract shall cause the Buyer or Seller to be in a position of non-compliance with or in contravention of Sanctions Laws;
- it and its contractors, agents and representatives will fully comply with all applicable Sanction Laws;

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The performance of this contract shall have no direct or indirect nexus with Syria, Iran, Cuba or North Korea. In the event of such nexus Seller will be entitled, without the need for consent, to assign or novate all or part of the contract to another entity within the group of companies.

Buyer and Seller agree to cooperate with reasonable requests for information or documentation to verify compliance with this clause. Without prejudice to its other rights under this clause, in order to ensure compliance with applicable Sanction Laws, the Buyer and Seller may require payment in Euro.

Performance obligations under this Contract shall be suspended upon contravention of Sanction Laws. A breach of warranty or undertaking under this sanctions clause by either Seller or Buyer shall entitle the non-breaching party to terminate the Contract without liability. Such termination shall be without prejudice to the rights and obligations of the parties in respect of any breach of this Contract occurring prior to such termination.

COMPLIANCE

Buyer and Seller and all other persons acting on its behalf in respect of this transaction shall fully comply with all applicable laws, regulations, ordinances, restrictive measures having the force of law of the U.S., E.U. (or its respective Member States), U.N., U.K., Switzerland, or any jurisdiction applicable to it and to the performance of this Contract relating to anti-corruption, anti-bribery and anti-money laundering ("Anti-Bribery Laws"). In particular, each party respectively represents, warrants and undertakes to the other that it shall not, directly or indirectly: take any action, directly or indirectly, that may result in a violation of the Anti-Bribery Laws, including but not limited to making, offering, authorizing, promising or accepting any payment, contribution, gift, business courtesy, bribe, rebate, kickback, or any other thing of value to or from any (a) foreign or domestic government official or employee; (b) employee of a foreign or domestic government-owned or government-controlled company; (c) foreign or domestic political party, political official, or candidate for political office; (d) any officer or employee of a public international organization; or (e) other private party acting in a commercial capacity, to obtain a competitive advantage for any party or to receive favorable treatment in obtaining or retaining business; in each case if this is in violation of or inconsistent with the Anti-Bribery Laws, including, without limitation, the U.S. Foreign Corrupt Practices Act and applicable country legislation implementing (in whole or in part) the OECD convention on combating bribery of foreign public officials in international business transactions.

A Party may terminate this Contract, without liability, at any time, upon written Notice to the other Party, if there is a breach of any of the above representations, warranties or undertakings, with all costs and liability associated with such breach being for defaulting Party's account.

ARBITRATION:

Arbitration in Singapore as per GAFTA arbitration rules no 125 and the governing law shall be English law. The seat of the arbitration shall be England.

GOVERNING CONTRACT:

All other terms and conditions where applicable and not in contradiction to the above as per GAFTA 100 including GAFTA 125 arbitration rules which both parties admit full notice and knowledge.

The Buyer's and Seller's signature appear below in confirmation and agreement of all the terms and conditions encompassed in this contract.

Buyer to return one copy of this contract duly signed in confirmation. However, failure of Buyer to return same duly signed documents will not in any way affect or alter validity of this contract.

SELLER:

BUYER:

12th August 2025

SALE CONTRACT NO. S005539.0000
DATED 16TH MAY 2025
FOR 2,000 MT +/-5%
OF SOUTH AMERICAN / SOUTH AFRICAN CORN AT SELLER'S OPTION
IN BULK
SHIPMENT:
FOR SOUTH AMERICAN CORN: 01ST OCTOBER 2025 – 31ST OCTOBER 2025
FOR SOUTH AFRICAN CORN: 15TH OCTOBER 2025 – 15TH NOVEMBER 2025
BOTH DATES INCLUDED WITH GAFTA SHIPMENT EXTENSION
ADDENDUM 1

It is mutually agreed between the seller and buyer that:

1. PRICE – NOW TO READ AS:

USD 224.61 per metric ton Cost and Freight (CNF) Free Out (FO), for one safe berth/one safe port at any Phu My and/or Cai Mep area port(s), Vietnam at Seller's option.

All other terms and conditions shall remain unchanged.

Seller:

Buyer:

ĐƠN BẢO HIỂM HÀNG HÓA

Số: 02254807.2

BẢN CHÍNH

Trên cơ sở Giấy yêu cầu của Người được bảo hiểm, TỔNG CÔNG TY BẢO HIỂM BIDV (BIC) đồng ý bảo hiểm cho các hàng hóa được kê khai dưới đây theo điều kiện/ điều khoản được chỉ rõ trong Đơn bảo hiểm này và/ hoặc Phụ lục đính kèm hoặc Đơn sửa đổi bổ sung (nếu có).

Người được bảo hiểm:			
Địa chỉ:			
Hàng hóa được bảo hiểm: SOUTH AMERICAN/ SOUTH AFRICAN CORN. Số lượng: 2,100.00 MT. Giá trị hàng hóa: 471,681.00 USD (Bao gồm ±5% dung sai theo Sales contract số S005539.0000 ngày 16/05/2025 và Sales Contract Addendum 1 ngày 12/08/2025).			
Phương thức đóng gói:	Chờ rời	Số hợp đồng/hóa đơn:	S005539.0000 ngày 16/05/2025 và Sales Contract Addendum 1 ngày 12/08/2025
Phương tiện vận chuyển:	Thông báo sau	Số L/C:	Thông báo sau
Đi từ:	Bất kỳ cảng nào tại South American/ South African	Đến:	Cảng Phú Mỹ hoặc Cái Mép, Việt Nam
Chuyến tái:	Không cho phép	Ngày khởi hành:	Thông báo sau
Vận đơn:	Thông báo sau	Ngày vận đơn:	Thông báo sau
Điều kiện bảo hiểm: - Điều khoản bảo hiểm hàng hóa A (CL382 - 1.01.2009) - Các điều kiện, điều khoản khác tham chiếu hợp đồng nguyên tắc/bao số 32/02/HNSG-BIC/2025 ký ngày 04/03/2025			
Số tiền bảo hiểm:	518,849.10 USD (110% giá trị hợp đồng)		
Tỷ lệ phí bảo hiểm:	0.200%	Phí bảo hiểm:	1,037.70 USD
Tỷ giá quy đổi:	26,445.00 VND/USD	Thuế GTGT:	103.77 USD
Mức khấu trừ:	0.23% khối lượng so với vận đơn/ vụ tổn thất	Tổng cộng:	1,141.47 USD
Thời hạn thanh toán:	Tuân theo hợp đồng nguyên tắc đã ký		
Cơ quan giám định tổn thất:	Công Ty Bảo hiểm BIDV Hồ Chí Minh Lầu 5 Khu C – Tòa nhà Waseco, Số 10 Phố Quang, Phường 2, Quận Tân Bình, TP. Hồ Chí Minh Tel: 028 – 39973999 Fax: 028 - 39974000		
Cơ quan bồi thường:	Công Ty Bảo hiểm BIDV Hồ Chí Minh	Ngày 19 tháng 9 năm 2025 TỔNG CÔNG TY BẢO HIỂM BIDV Signature valid Ký bởi: TỔNG CÔNG TY BẢO PHÂN BẢO HIỂM NGÂN HÀNG ĐẦU TƯ VÀ PHÁT TRIỂN VIỆT NAM	
Thanh toán bồi thường tại:	Tp.Hồ Chí Minh		
Cấp bởi:	Công Ty Bảo hiểm BIDV Hồ Chí Minh		
Cấp tại:	Tp.Hồ Chí Minh lúc 17h00		
Thông tin khác: Người soạn thảo: Võ Thị Thanh Thúy Người kiểm soát: Lê Bá Toàn Ngày in: 19/09/2025 Đơn bảo hiểm này có đầy đủ giá trị pháp lý theo quy định của pháp luật về Thương mại điện tử.			
LƯU Ý QUAN TRỌNG TẠI TRANG SAU			

NHỮNG ĐIỀU CẦN LƯU Ý

Người được bảo hiểm cần đọc kỹ Đơn bảo hiểm này và thông báo, gửi trả ngay lập tức cho BIC chỉnh sửa nếu có sai sót.

Trong mọi trường hợp, Người được bảo hiểm hay đại lý của họ phải áp dụng mọi biện pháp hợp lý để ngăn ngừa và giảm thiểu tổn thất và tiến hành các thủ tục cần thiết để bảo lưu quyền khiếu nại đối với người vận chuyển, người đại diện của người vận chuyển hay người thứ ba khác. Cụ thể như sau:

1. Khiếu nại ngay người chuyên chở, chính quyền cảng hay người nhận uỷ thác hàng hoá khác đối với bất cứ kiện hàng nào bị tổn thất hoặc mất mát;
2. Trừ khi có thư kháng nghị, không được cấp giấy biên nhận hoàn chỉnh cho hàng hoá có nghi ngờ tổn thất.
3. Khi giao container phải đảm bảo rằng container phải còn nguyên vẹn và phải được nhân viên có chức năng kiểm tra ngay. Nếu nhận container bị tổn thất, niêm phong bị gãy vỡ, mất mát hoặc khác với sự miêu tả trong chứng từ vận tải thì phải lập giấy giao nhận đúng tình trạng như vậy và giữ lại tất cả các niêm phong không bình thường và gãy vỡ đó để điều tra sau này.
4. Yêu cầu đại diện người chuyên chở hay người nhận uỷ thác hàng tham gia việc chứng kiến giám định ngay khi phát hiện hàng hoá có hiện tượng mất mát hoặc hư hỏng và qua giám định nếu thấy thực tế có tổn thất thì phải lập hồ sơ khiếu nại họ.
5. Gửi giấy báo cho đại diện người chuyên chở hay người nhận uỷ thác hàng hóa trong vòng 3 ngày sau khi nhận hàng nếu tổn thất thuộc loại khó phát hiện vào thời gian nhận hàng.
6. Để đòi bồi thường, người khiếu nại phải có quyền lợi trong đối tượng bảo hiểm vào thời gian xảy ra tổn thất đó và thực sự chịu tổn thất thực tế đó.

Ghi chú: Người nhận hàng hoặc đại lý của họ phải tuân theo đúng các quy định của chính quyền cảng tại cảng dỡ hàng.

HƯỚNG DẪN THU XẾP GIÁM ĐỊNH

Trong trường hợp xảy ra tổn thất hay thiệt hại có thể gây ra khiếu nại theo đơn bảo hiểm này, Người được bảo hiểm phải thông báo ngay cho BIC hay đại lý được BIC chỉ định đến giám định. Trừ khi có thỏa thuận khác, BIC có quyền từ chối giải quyết vụ khiếu nại không được chứng minh trong biên bản giám định được lập bởi đại lý do BIC chỉ định trên Đơn bảo hiểm. Phí giám định thông thường được trả bởi người khiếu nại và được tính vào số tiền khiếu nại BIC.

CHỨNG TỪ KHIẾU NẠI

Người được bảo hiểm và đại lý của họ phải cung cấp ngay tất cả các chứng từ sau đây:

1. Thư khiếu nại
2. Bản gốc Đơn bảo hiểm.
3. Bản gốc hoặc bản sao Phiếu đóng gói và Hóa đơn thương mại.
4. Bản gốc Vận tải đơn và/hoặc bản gốc Hợp đồng chuyên chở.
5. Biên bản giám định và chứng từ tài liệu khác ghi rõ mức độ tổn thất.
6. Giấy biên nhận hoặc Giấy chứng nhận tàu giao hàng và phiếu ghi trọng lượng tại nơi nhận cuối cùng.
7. Thông báo tổn thất và yêu cầu bồi thường đối với đơn vị vận chuyển.
8. Những tài liệu khác để xem xét giải quyết bồi thường.